

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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WILLIAM PARKER,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer JAMES ARGILA, Shield No. 15383; Police Officer ABIOLA MCINTOSH, Shield No. 457; Lieutenant TABATHA BLAKE; and JOHN and JANE DOE 3 through 10, individually and in their official capacities, (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
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**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

11 CV 3127 (NGG) (JO)

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

5. This Court has supplemental jurisdiction over the New York State claims pursuant to 28 U.S.C. § 1367.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

7. Plaintiff William Parker (“Plaintiff” or “Mr. Parker”), an African-American male, is a resident of Kings County in the City and State of New York.

8. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. Defendant Police Officer James Argila (“Argila”), Shield No. 15383, at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Argila is sued in his individual and official capacities.

10. Defendant Police Officer Abiola McIntosh (“McIntosh”), Shield No. 457, at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant McIntosh is sued in his individual and official capacities.

11. Defendant Lieutenant Tabatha Blake (“Blake”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Blake is sued in her individual and official capacities.

12. At all times relevant defendants John and Jane Doe 3 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 3 through 10.

13. At all times relevant herein, defendants John and Jane Doe 3 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 3 through 10 are sued in their individual and official capacities.

14. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

15. At approximately 3:30 p.m. on February 1, 2011, Plaintiff was lawfully present in front of his home at 775 Blake Avenue in Brooklyn, New York.

16. Plaintiff was in front of his home in order to meet the mother of his child, who was arriving on a bus.

17. An unmarked police car arrived on the scene.

18. The defendant officers emerged from the police car dressed in plainclothes and approached a car parked on the curb from which loud music was emanating.

19. Plaintiff had no association with the car or its occupants.

20. Plaintiff was neither operating nor situated anywhere near the vehicle.

21. One of the defendant officers approached Plaintiff and asked him if he lived at 775 Blake Avenue.

22. The officer lacked reasonable suspicion to suspect plaintiff of any crime at the time of the stop.

23. Plaintiff answered that he did live in the building and showed the officer his name on the buzzer.

24. The officer seized Plaintiff and threw him against a wall.

25. One officer said, in sum and substance, "Lock him up," and another officer told Plaintiff, in sum and substance, "You're going through the system."

26. Defendant officers placed Plaintiff in handcuffs that were unreasonably tight and arrested him, even though they knew at the time that they lacked probable cause to do so.

27. One officer told Plaintiff, in sum and substance, "We can lock you up for anything."

28. Upon information and belief, the unidentified individuals in the car

playing loud music were not arrested.

29. Plaintiff was then taken to the 75th Police Precinct.

30. At the precinct, defendant officers unlawfully strip-searched the Plaintiff.

31. At the precinct the officers falsely informed employees of the Kings County District Attorney's Office that they had observed Plaintiff making unreasonable noise and resisting arrest and prepared police paperwork and other documents to that effect.

32. The officers fabricated these statements.

33. Plaintiff was then taken to Brooklyn Central Booking.

34. At arraignment late in the evening of February 2, 2011, Plaintiff was released on his own recognizance.

35. On April 5, 2011, the criminal charges against Plaintiff were adjourned in contemplation of dismissal.

36. Within ninety days after the claim alleged in this Complaint arose, a written notice of claim was served upon defendants at the Comptroller's office at 1 Centre Street, New York, New York.

37. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

38. This action has been commenced within one year and ninety days after the happening of the events upon which the claims are based.

39. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM
42 U.S.C. § 1983

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. Defendants, by their conduct toward plaintiff alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to the Constitution of the United States.

42. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
Unlawful Stop and Search

43. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

44. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

45. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

False Arrest

46. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

47. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

State Law False Imprisonment and False Arrest

49. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

50. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

51. Plaintiff was conscious of his confinement.

52. Plaintiff did not consent to his confinement.

53. Plaintiff's confinement was not otherwise privileged.

54. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM
Unreasonable Force

56. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

57. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

58. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM
State Law Assault and Battery

59. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

60. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

61. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondet superior*.

62. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SEVENTH CLAIM
Negligent Hiring/Training/Retention Of
Employment Services

63. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

64. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

65. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

66. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

67. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

68. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

EIGHTH CLAIM
Unlawful Strip Search

69. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

70. The defendants violated the Fourth and Fourteenth Amendments because they unlawfully subjected plaintiff to a strip search without legal justification.

71. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM
Failure To Intervene

72. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

73. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

74. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: September 30, 2011
New York, New York

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